IN THE CIRCUIT COURT '10 OF GHANA, ACCRA, HELD THIS WEDNESDAY THE 2ND DAY OF APRIL 2025 BEFORE HER HONOUR EVELYN E. ASAMOAH (MRS)

SUITNO.D3/17/2023

THE REPUBLIC

V.

1. EDWARD SENAH

2. EVANS

3. ONE OTHER

DSP NANA OPPONG FOR THE REPUBLIC

MR. RAYMOND FELLI HOLDS MR. DANKWAH'S BRIEF FOR THE ACCUSED

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JUDGMENT

● The accused persons, after their operations and to cover up their deals, took away the complainant's digital video recorder/ hard disk memory containing the CCTV footage from his room. However, the CCTV of the complainant's neighbour, opposite the residence, captured the accused persons, their movement, and vehicle on the day of the incident, leading to the arrest of the first accused and subsequent prosecution. The other accused persons are at large.

- The accused persons were charged with the offence of conspiracy to commit a crime, to wit stealing, contrary to section 23(1) and 124(1) of the Criminal and Other Offences Act 1960 - Act 29.
- The first accused person(A1) was charged with the offence of abetment of crime to wit stealing contrary to sections 20 (1) and 124 (1) of Act 29.

- The second and third accused persons (A2 and A3) were charged with the offence of unlawful entry contrary to section 152 of Act 29 and the offence of stealing contrary to section 124(1) of Act 29.

The first accused (A1) pleaded not guilty to all the charges.

● In **Kingsley Amankwah (A.K.A Spider) V. The Republic**, Criminal Appeal No. J3/04/2019 dated 21st July 2021, Justice Dotse stated:

> *"… In this life, whatever goes up comes down and whatever is hidden is exposed. How else can we explain that a mere text message accidentally sent to Kweku would lead to the arrest of the appellant and the others in what they thought was a successful armed robbery operation?*
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> *Even if we have a sleep of death, perhaps we might dream, and who knows what type of dream comes after death. It is therefore very imperative that, the words "To be or not to be" must be taken seriously by us all in this walk of life in this transient world. … We would again reiterate our appeal to our traditional rulers, all religious leaders, politicians of all walks of life, students and youth leaders to join in the crusade to rid this country of acts of indiscipline and violence which has been triggered by the get rich attitude and greed that has engulfed the country…"*

●The prosecution presented the following facts: The complainant is an Indian national and a manager of a private organization in Ghana, and a resident of House number 4, Francia Road, Golden Gate of Regimanuel Estate. The accused is a self-styled businessman who claims he is into car rentals, travel, and tour businesses, and a resident of Race Course, a suburb of Lapaz. The complainant, who stays in the apartment with his nuclear family on Saturday, 24th December 2022, travelled to Keta in the Volta region with his family for a two-day holiday trip. They left behind one Anita Amina, who occupies an apartment in the house whilst serving as their house help to take care of and watch over the property in their absence.

Around 5 pm on the same day, the house help decided to go around the house and ensure everything was in order, but to her surprise, she heard strange voices in the hall of the apartment where the complainant and his nuclear family occupied. She drew closer and realized that the door to the hall had been damaged by unknown persons who had entered the hall at the time. She again noticed the accused Edward Senah and one other loitering around the main entrance to the house. A call was immediately made by the house help to the complainant, prompting her of the presence of unknown criminals in the hall and the presence of the accused and one other person who were loitering around the wall and the main gate to the house. Not quite long, the two who had forcibly entered the hall with the help of the accused who remained at the spying post succeeded in stealing properties, including cash USD 2,000…… all valued at GHC 95,000 from the complainant's residence. They came out with the stolen items concealed in two bags belonging to the complainant.

The two stormed out of the house, and the accused, who served as a spy and driver for them, moved his Kia Seol car with registration number GB 1446-21- red in colour, picked up his two accomplices, and drove out of the vicinity. The culprit thought they had succeeded in demobilizing the CCTV device, but unfortunately, a similar CCTV device in the house of the complainant's neighbour captured the accused person in his outfit on the day and occasion, as well as his accomplices. Police started trailing the Kia Seol vehicle of the accused, which he disposed of by selling it to a witness in this case with the thought of concealing his identity. However, the surveillance team of the headquarters arrested/impounded the vehicle, which led to the arrest of the accused, and a search conducted in his house led to the discovery and retrieval of the shirt he wore on the 24th December 2022 to act with his accomplices, whom he claims are Tanzanians, to commit the crime.

● Prosecution called three witnesses: the complainant, the house help, and the Investigator. The complainant testified that, on the trip, his wife received a phone call from their house help, saying that she heard an unusual noise in their room. His wife handed over the phone to him, and he directed Animah, the house help, to go to his room to ascertain what was happening. According to him, Animah informed him that she saw two people in his room. He called the security manager at the estate's main gate and informed him of what was happening. Animah later called and said the men had bolted. Upon his return from the trip, he noted that the entrance to the main house door, the master bedroom, the wardrobe, and the gallery doors were broken. That his laptops, money, jewels, and other items were stolen. His CCTV DVR was also destroyed.

● Anita Animah, the house help, testified that she came out of the girls' quarters and spotted a young man standing by the gate, making a call. She became suspicious of the man's behaviour and decided to examine the house. She observed that the main door to the complainant's room had been forcibly opened and damaged. She drew closer and overheard people talking in the complainant's room, so she informed the complainant of the incident. She pointed out that she saw two young men who came out of the apartment with bags belonging to the complainant. When the two men came out, she saw the accused(A1) standing in front of the house, waiting for the two men who rushed into a waiting car. The accused speedily drove them away.

●The investigator contended that the accused acted as a spy while his accomplices broke into the complainant's property. That investigation revealed that the accused had disposed of the car by selling it, and a subsequent search led to the retrieval of the shirt he wore to commit the crime.

●**Section 20 (1) and (2) of the Criminal and Other Offences Act 1960,** Act 29 states:

Abetment of a criminal offence – 20(1) A person who, directly or indirectly, instigates, commands, counsels, procures, solicits, or in any other manner purposely aids, facilitates,

encourages, or promotes, whether by a personal act or presence or otherwise, and a person who does any act for the purposes of aiding, facilitating, encouraging or promoting the commission of a criminal offence by any other person, whether known or unknown, certain or uncertain, commits offence of abetting that criminal offence of abetting that criminal offence and of abetting the other person in respect of that criminal offence

20(2) Every person who abets a criminal offence shall, if the criminal offence is actually committed in pursuance or during the continuance of the abetment, be deemed to have committed that criminal offence.

In **Commissioner of Police V. Sarpey and Nyamekye** [1961] GLR 756, Justice Sarkodee-Adoo J.S.C. (as he then was) stated:

> *"In order to convict a person of aiding and abetting it is incumbent on the prosecution to prove that the accused did any one of the acts mentioned in subsection (1) of section 20. Under subsection (2) a person who abets a crime shall be guilty if the crime is actually committed (a) in pursuance of abetment, that is to say, before the commission and in the presence or absence of the abettor and (b) during the continuance of the abetment, that is to say, the abetment must be contemporaneous in place, time and circumstance with the commission of the offence. In our view, an act constituting an abetment in law must precede or it must be done at the very time when the offence is committed..."*

In her book titled- ***The General Part of Criminal Law – A Ghanaian Casebook (Volume 2),*** at page 489, Justice Professor Henrietta J.A.N. Mensa-Bonsu, J.S.C., stated:

> *"The crime of abetment is committed when a person renders assistance to another for the purpose of committing crime, and thereby makes a contribution to the doing of a criminal act…For instance, in a scheme to rob a bank, there would be several*

participants, i.e the master-brain who devised the whole scheme; the financier of the scheme; the insider who produced the plans of the plans of the premises to be robbed; the carpenter who manufactured the special ladder to be used, the driver of the get-away car; the watchman who agreed to be absent on that day to facilitate the operation; ***the look-out whose job it was to ensure that the principals would be warned*** *if the police approached the scene; and those who purported to provide spiritual strength to the scheme such as the pastor or juju man or mallam who blessed the scheme or provided potions to guarantee the success of the scheme; all of whom would be linked by a common design to commit one crime. Rules on accessorial liability thus ensure that each of these people would be liable for the assistance rendered, for perhaps, without their indiv idual contributions, the principals maynever have attempted the crime..."*

● ***<u>The Spy- The First Accused</u>***

In his witness statement, the first accused- A1 stated that in August 2022, he was in the UK en route to France when he received a call from his secretary that one Evans wanted to rent a car from his company, which he agreed to. However, upon his return to Ghana, he realized that the car was slightly damaged by Evans, so he decided to sell the car from his fleet of cars. In September 2022, he sold the car to Seun Saddiq Bajei, who made part payment, so he decided to keep the car till he completed payment.

Evans informed him that he wanted to rent another car; hence on 24th December 2022, he set off to deliver the car to Evans at Regimanuel's residence. Upon reaching the estate, the security officer called his host, who confirmed that he was expecting him, so he was allowed to enter the estate. He pointed out that Evans informed him that he had moved to a different apartment in the estate, so he parked his car and knocked on two different apartments before he was able to locate Evans' apartment. After he delivered the car, he walked back through the main entrance to leave the estate. In January 2023, Evans

returned the car to him. According to A1, he knows nothing about the case and that he did not steal anything from the complainant, nor did he aid or abet the crime. He averred that the CCTV footage did not show or depict him looking out for the perpetrators or having any contact with them. He stated that the said Evans, who allegedly rented the car, has passed away.

● The accused (A1) admitted that he entered Regimanuel's estate on the day of the incident and was in charge of the red Kia Soul at the crime scene - in ***Exhibit D*** (CCTV footage) -Video Clip 1. In the CCTV footage— Video clips 1 and 2—the accused drives the red car and parks close to the complainant's house. He moves out of the car while making a call and stands in front of the gate. In video clip 3, he enters the house without an invitation and is still on a phone call. He moves around the house and later sits in the vehicle, conducting surveillance.

After his surveillance, the accused drove the vehicle from the scene, and his other accomplices entered the house- Video clip 4. In Clip 5, the accused continued his surveillance operation. This time, he walked in front of the house, still on the phone. In video clips 6 and 7, the house help, suspecting the activities of the accused persons, started running around the house and on the street, making calls.

The accused(A1) reappeared at the scene in his red vehicle shortly after the house help suspected the criminal activities and confronted them. A1's accomplices quickly moved out of the house. They spoke to the house help and ran away, following the direction of A1's car. The house help testified that she followed the car and saw the two accused persons/ accomplices boarding A1's vehicle. She identified A1, met him in front of the gate, and spoke to him. The shirt (Exhibit E) worn by A1 at the crime scene was retrieved from his room.

● **Shadowy Evans**

The accused(A1) alleged that he went to the estate purposely to deliver the red Kia vehicle to the said Evans. In paragraph 5 of his witness statement, he stated that Evans had earlier rented the exact vehicle and wanted to rent it again, so he set off to the estate to deliver the car to him. However, in his caution statement ***Exhibit F***, he alleged that Evans initially rented the vehicle in March 2022 and used same till September 2022. The vehicle was involved in an accident, so it was brought back. He then sold it to Saddik, but Saddik was unable to make the whole payment, so the car remained in his possession.

He rented out the same car to Evans again, and Evans continued to use the car until January 2023. Thus, at the time the incident happened on 24th December 2022, the accused in ***Exhibit F*** stated that the vehicle was in Evans' possession. However, in his witness statement, he alleged that he went to the estate to deliver the car, supposedly in Evans' possession, to Evans. His evidence was inconsistent. He failed to lead the police to the said house where he purportedly delivered the vehicle. He alleged that Evans has passed away; he showed pictures of the said Evans on a bed and a picture of a tomb. In his caution statement, he stated that Evans is known as Ramadhani Rajabu Rashidy. However, the name on the tomb of the said Evans is different - Yusuph Aidan Sudi. He was not candid with the court.

● The evidence clearly established that the accused(A1) did not go to the estate to deliver any vehicle to the said Evans. He conspired with the other accused persons and aided them in stealing the complainant's valuables. He spied/ surveyed the complainant's house to ensure there was no one in the rooms, communicated with his accomplices throughout the period, and sped off with them in his car after the incident. To cover up his crime, A1 disposed of the car after the operation, and the retrieval of the car from a lady and one Nana led to his arrest and prosecution. Prosecution proved its case beyond reasonable doubt. The accused (A1) is hereby convicted of the offences.

● **Plea in mitigation**

Counsel – The accused person has regretted his actions. He has a wife and a young baby for whom he is caring. Indeed, the accused person's wife, I am informed, is pregnant. To the best of my knowledge, he is unknown to the police. In the circumstances, I will pray this court to temper justice with mercy by imposing a fine as punishment. The research papers are filled with evidence that the prisons have really not reformed or adequately reformed convicts. Again, even though I am standing, I am on bended knees praying again and again that the convict is fined by way of sentencing. I humbly pray.

● **Prosecution** – I can't tell if he is known. It's our prayer that the convict herein is sentenced without a fine but with a custodial sentence. Our position is that the modus operandi of the convict is beyond common knowledge. It is well thought out, well planned, and well executed. Such people are threat to society and they need not be among the good people. So many things were taken out of the complainant's room, none have been retrieved. We are praying for a custodial sentence to serve as a deterrent to his accomplices who are on the run. And again, if there be any accomplice at the Regimmanuel Estate who helped the convict herein, it will also be a warning to them to be of good behaviour. The convict herein has enough cash on him sufficient to pay any fine since all the items stolen from the complainant's room, amounting to GH¢95,000 plus, are still with him. Our humble prayer is that a custodial sentence be imposed to serve as a deterrent. We humbly pray.

● **Sentence**

Mr. Daniel Korang in his book ***Criminal Prosecution in Ghana: Practice and Procedure***, pages 596 – 606

> *"…In imposing sentence, the court must consider the prevalence of the crime within the particular locality where the offence took place or in the country*

generally … In some cases, the subject matter or proceeds of the crime may successfully be traced and recovered … On the other hand, where the proceeds of the crime have been disposed of, used up or irretrievably dealt with by the accused, the sentence may be harsher than if the proceeds have been recovered … The court may also consider the circumstances surrounding the commission of the crime in imposing sentence on the accused. Where the offence seems to have been committed on the spur of the moment, the court may consider it as a mitigating factor. On the other hand, where the crime was pre-arranged, premeditated and expertly executed, that may go to enhance sentence. Where the accused appears to be a 'professional' or an 'expert' in the particular crime for which he is charged, he may receive a harsher sentence…"

In this case considering the prevalence of the crime of stealing, especially against some expatriates in the region and the fact that the crime was premeditated and expertly executed by the accused persons – where he acted as a spy, the removal of the CCTV DVR/ memory disk from the complainant's room, the non-cooperation of the accused with the police, the disposal of the vehicle after the incident and non-retrieval of the complainant's valuables - custodial sentence will be imposed to serve as deterrence to like-minded individuals. The first accused is hereby sentenced as follows: He is sentenced to six (6) years imprisonment with hard labour on each count, to run concurrently. He is ordered to refund/return the items to the complainant.

(SGD)

H/H EVELYN E. ASAMOAH (MRS)

CIRCUIT COURT JUDGE